

Qamar-ul-Islam Versus Province of Punjab, etc.

Date of Hearing:	07.05.2025
Petitioners by:	Barrister Syed Ali Nouman Shah and Arsalan Qaiser, Advocates
Respondents by:	Barrister Raja Hashim Javed, Assistant Advocate-General. Ms. Nabila Rubab, Assistant Attorney General. Sh. Zamir Hussain, Sr. ASC for the Respondent No.2/TMA, Hazro.

2. The procedural history of this case is that the Petitioner namely Qamar-ul-Islam and six others being the legal heirs of Babu Noor Muhammad, on 08.01.2008, instituted a suit for declaration along with permanent injunction in respect of suit property measuring 13 kanals 14 marlas, situated in Khasra Nos.885 and 886 (current Khasra Nos.800 and 803), in the revenue estate of village Aurtakpur, Hazro, District Attock. The suit was filed against the Province of the Punjab through District Officer (Revenue), Attock (the “Revenue Department”) and Tehsil Municipal Administration, Hazro, District Attock (the “TMA”), with the averments that the suit property was originally

owned by one Balamkand, a Hindu, who had sold the said property to Babu Noor Muhammad their predecessor-in-interest, through a registered sale deed dated 03.01.1956. However, no mutation was sanctioned in favour of Babu Noor Muhammad on the basis of the said registered sale deed. Subsequently, Babu Noor Muhammad migrated to District Mardan, Khyber Pakhtunkhwa, and then to Islamabad, where he passed away on 24.02.2001. It was alleged that the Revenue Department as well as the TMA, by misrepresentation and making false entries, got the suit land transferred in their names despite the fact that at the relevant time, Babu Noor Muhammad was the actual owner of the said land. The Petitioners asserted that the fact regarding non-sanctioning of mutation on the basis of the registered sale deed came to their knowledge sometime before the institution of the suit in 2008. Consequently, they approached the Revenue Department for sanctioning of mutation in their favour, being the legal successors of Babu Noor Muhammad, but their request remained unheeded. Hence, they filed the suit in the year 2008 about the sale deed of 1956.

3. The Respondents contested the suit by taking the stance that Balamkand, a non-Muslim, had died issueless and his property was transferred in the name of the Provincial Government through letter No.SGC-4857 via mutation No.1553 dated 06.05.1965. Subsequently, the Provincial Government transferred the suit land in favour of TMA, Hazro. It was further pleaded that the Petitioners or their predecessor-in-interest Babu Noor Muhammad, were never in **ownership** or **possession** of the said land. The alleged sale deed dated 03.01.1956 was claimed to be forged and fabricated. It was also asserted that the suit was badly barred by limitation.

4. Out of the divergent pleadings of the parties, learned Trial Court framed as many as nine (09) issues, recorded pro and contra evidence of the parties, and ultimately decreed the suit vide judgment and decree dated 04.02.2010. Feeling aggrieved thereof, the Respondents, Province of Punjab and TMA Hazro, filed two separate appeals i.e. Civil Appeals No.78 and 79 of 2011, before the Additional District Judge, Attock. It is an important fact that during

pendency of aforesaid both appeals, Saif-ul-Islam, Tanvir-ul-Islam, Nadeem-ul-Islam (sons) and Mst. Surriya Bibi, Mst. Khalid Bibi and Mst. Nasira Jabeen (daughters) of late Babu Noor Muhammad (being Respondents) filed an application under Order XLI Rule 33 CPC for deletion of their names from the array of the Respondents and for dismissal of suit to their extent. However, learned Appellate Court, Attock, accepted both the appeals vide consolidated judgment and decree dated 23.10.2013. Hence, this Civil Revision.

(II) PETITIONER'S SUBMISSIONS

5. Learned counsel for the Petitioner Barrister Syed Ali Nouman Shah, Advocate submitted that the learned trial Court rightly decreed the suit vide judgment and decree dated 04.02.2010 after proper appreciation of oral and documentary evidence. He added that the learned Appellate Court, Attock, reversed well-reasoned findings of learned trial Court on Issues No. 1 and 3 through judgment dated 23.10.2013, which is illegal, based on misreading and non-reading of evidence and contrary to the record. He further stated that while giving finding on limitation (Issue No. 3) the learned Appellate Court overlooked the settled law that recurring wrong entries in the revenue record give rise to a fresh cause of action each time. He further averred that the trial court rightly appreciated that Babu Noor Muhammad, after purchasing the suit land moved to Mardan and later to Islamabad, where he died and that the Petitioner only came to know of the omission in the revenue record shortly before filing the suit. Further averred that the learned trial Court has rightly held that the Petitioner had both cause of action as well as locus standi. Barrister Syed Ali Nouman Shah, Advocate further argued that the Trial Court, after thorough evaluation of evidence, found that the suit land was validly purchased by Babu Noor Muhammad, tenants remained in possession on behalf of the Petitioner and wrong entries were due to negligence of the revenue authorities. He also contended that the Respondents/Defendants admitted the existence of the registered sale deed in their written statements and the same was produced as Ex.P-1, corroborated by PW-1 Masood Akhtar, HRC, but this was overlooked by the learned Appellate Court. He further

submitted that instead of allowing the matter to be decided on merits, the Respondents, being government officials, resorted to undue pressure and intimidation through the Anti-Corruption Department on the other legal heirs of Babu Noor Muhammad. He emphasized that two important applications i.e. one by Respondents No. 1 and 3-7 regarding surrender of their shares; and another by the Petitioner for production of documents; were not decided by the appellate court, which delivered its judgment in a hasty and one-sided manner. He urged that the impugned judgment suffers from serious legal and procedural defects and warrants interference by this Court under Section 115 CPC. Learned counsel has placed reliance on the judgments reported as “*Muhammad Yaqoob versus Mst. Sardaran Bibi and others*” (PLD 2020 SC 338), “*Abdul Sattar Khan and another versus Rafiq Khan and others*” (2000 SCMR 1574), “*Atta Muhammad versus Nasir-ud-Din*” (PLD 1993 Peshawar 127), “*Khaliq Dad versus Ahmad Nawaz*” (2014 MLD 1706), “*Khawaja Muhammad Khan versus Hayat Khan*” (1997 MLD 2182), “*Habibullah Jan and others versus M. Hassan Khan and others*” (1991 MLD 25), “*Qasim Khan versus Mirza Ali Khan and others*” (1990 MD 2406), “*Mst. Irum Un Nisa and 8 others versus Mst. Naz Parver and another*” (2019 CLC 335) and “*Haji Atlas Khan and another versus Mst. Mehran Bibi and 5 others*” (2010 CLC 1629).

(III) RESPONDENTS’ SUBMISSIONS

6. Conversely, Barrister Raja Hashim Javed, Assistant Advocate-General and Sh. Zamir Hussain, Sr. ASC for the Respondent No.2/TMA, Hazro; have defended the impugned judgment and decree dated 23.10.2013 by stating that the same has been passed in accordance with law. Learned Law Officer added that the learned Appellate Court passed the impugned judgment and decree after thorough examination of the pleadings, evidence and entire record of the case. He added that the learned Appellate Court applied judicial mind to all relevant issues. He further stated that due consideration was given to the longstanding entries in the revenue record and the Petitioner failed to discharge the burden of proof to rebut the presumption of correctness attached

to such entries. He averred that the judgment reflects proper appraisal of oral and documentary evidence and addresses the limitations of the Petitioner's case. He also argued that the learned Appellate Court made a reasoned distinction between mere possession and lawful ownership and rightly concluded that the Petitioner could not prove his exclusive title through an unimplemented sale deed or vague plea of family settlement. He contended that there is no illegality or material irregularity in the findings of the learned Appellate Court, which were passed in accordance with law and urged that the impugned judgment is well-reasoned and warrants no interference in revisional jurisdiction.

7. Sh. Zamir Hussain, Sr. ASC for Respondent No.2/TMA Hazro, also stated that the Petitioner claims ownership of the property through his father, Babu Noor Muhammad, as one of his legal heirs, but notably, the suit was instituted on 08.01.2008, almost fifty-eight (58) years after the execution and registration of the alleged sale transaction in favour of the Respondent. He added that Babu Noor Muhammad, during his lifetime, never asserted any claim or right over the suit property on the basis of the alleged sale deed and as such the Petitioner has no locus standi to file this civil revision. Learned counsel also submitted that the original sale deed was not produced on record. Instead, the Petitioner resorted to an unusual course by summoning officials of the revenue department to testify mere existence of a registered sale deed/Ex.P1. He emphasized that this document establishes secondary evidence under Article 74 of the Qanun-e-Shahadat Order, 1984 (the "QSO") but no permission was either sought or granted for the production of such secondary evidence in terms of Article 76 of QSO. He further argued that although the official witnesses deposed that a copy of a registered sale deed dated 03.01.1956 is available in the record, they never verified its authenticity or genuineness, therefore, in the absence of statutory compliance for admission of secondary evidence, the exhibited document cannot be treated as admissible evidence in the eyes of law.

8. Heard. Record perused.

(IV) DETERMINATION BY COURT

9. The core Issue in this revision petition revolves around the claim of **ownership** and **possession** of the suit land measuring 13 kanals and 14 marlas situated in the revenue estate of Village Aurtakpur, Tehsil Hazro, District Attock. The Petitioner/Qamar-ul-Islam, being one of the legal heirs of late Babu Noor Muhammad, based his claim on a registered sale deed dated 03.01.1956, purportedly executed by Balamkand, the previous owner. The learned Trial Court had accepted the claim but the learned Appellate Court, upon reappraisal of the record, reversed those findings through a comprehensive and well-reasoned judgment. Under Issue No.1, the learned Appellate Court specifically scrutinized the authenticity, effect, and evidentiary value of the said sale deed and the overall claim of possession by the plaintiffs. It was rightly held that although PW-1 (Masood Akhtar, HRC) produced the sale deed (Ex.P-1) from the Registrar's office yet no mutation was ever sanctioned in favour of Babu Noor Muhammad based on that transaction. The fact that no mutation was attested for several decades despite the seller's death and changes in government record was treated as a serious omission, undermining the petitioners' assertion of ownership.

(i) NO ATTESTING WITNESS

10. The Appellate Court further found that no attesting witness or scribe of the sale deed was produced by the Petitioner to prove its execution in terms of Article 79 of the QSO. He only primarily relied on the document's availability in the record but failed to produce legally admissible evidence to prove its contents and execution. This lapse was fatal to his case. It is astonishing that Muhammad Saleem (PW5) during his cross-examination admitted that he was born in the year 1965, whereas the alleged sale deed was registered in the year 1956. It shows that whatsoever, he stated is nothing but hearsay. Moreover, to show the possession/cultivation, there is no *khasra girdawari* on record.

Additionally, the Petitioner/PW-6/Qamar-ul-Islam appeared as attorney for the rest of the plaintiffs but failed to establish a valid and lawful

power of attorney. During cross-examination recorded on 23.05.2009, he stated his age as 61 years. It means that he would have born in the year 1948 i.e. was about 8 years old in 1956. His statement also primarily rests upon hearsay, except that his father had told him about the registration of the sale deed; yet, he did not take any step.

On the contrary, other legal heirs of Babu Noor Muhammad filed an application under Order XLI Rule 33 CPC before the Appellate Court, disowning the suit entirely. They categorically stated in both the aforesaid Appeals, before the learned Appellate Court that *“they have got no concern with the suit in hand. Neither they have appointed anyone as attorney nor said suit was filed on their behalf by a competent attorney in civil court. They have got no objection on setting aside of the judgment and decree passed in their favour alongwith respondent No.4.”* This serious contradiction cast grave doubts upon the *bona fides* of the suit and its institution by just one heir, the Petitioner/Qamar-ul-Islam, in the name of all.

(ii) MUTATION IN FAVOUR OF PROVINCIAL GOVERNMENT

11. The learned Appellate Court also examined the revenue record produced through PW-2 and PW-3, which clearly reflected that after the death of Balamkand, the land was mutated in favour of the Provincial Government vide mutation No.1553 dated 06.05.1965 and that the name of Babu Noor Muhammad never appeared as owner or possessor in the revenue record. The evidence showed that after 1965, the land passed into the possession of government departments, ultimately being reflected in the name of TMA Hazro as per the record of rights for the year 2003-04. The Petitioner’s attempt to show continuity of possession through PW-5, Muhammad Saleem also failed, as the Court noted discrepancies in his claimed lineage. He claimed to be the grandson of Fazal Dad, tenant of Balamkand but the revenue record showed the name of tenant as Fazal Qadir son of Qadir. The learned Appellate Court found that the pedigree table produced by the Petitioner did not support the claimed relationship and was inconsistent with the historical revenue entries. Additionally, the possession of the Petitioner or his

forefathers was never established through any official record. As per record, not a single document carried their names as tenants, occupants, or possessors of the suit land, whereas the land passed into the possession of government departments, ultimately being reflected in the name of TMA Hazro, who had title of the same. PW3/Muhammad Zubair, Patwari Circle, stated that possession was changed vide mutation No.1553 dated 06.05.1965 in favour of TMA. He further stated in his examination in chief that initially the ownership of the disputed land was of Central/Federal Government, which was leased out to one Muhammad Afzal son of Behram. He admitted in his cross examination that vide mutation No.703, dated 18.03.1990, the Provincial Government transferred the possession to Municipal Committee Hazro. The documentary evidence favours the Respondents version i.e. Mutation No.1553 dated 06.05.1965 (Ex.D12) in favour of Provincial Government; the Mutation No.2080 in favour of Muhammad Afzal by the Central/Federal Government; and register record of rights for the year 1999-2000 (Ex.D9) shows that Provincial Government transferred the possession to the TMA Hazro, which is still with TMA. In this regard reliance is placed on the judgment of the Hon'ble Supreme Court of Pakistan reported as "Haji MUHAMMAD YUNIS (DECEASED) through legal heirs and another Versus Mst. FARUKH SULTAN and others" (2022 SCMR 1282), wherein it has been held that:

15. Possession follows the title. This is a well settled principle. Therefore, unless contrary is proved by cogent evidence, an owner is presumed to be in possession of his property.

12. As per the provision contained in section 52 of the West Pakistan Land Revenue Act, 1967, the presumption of truth is attached to the entries in the record of rights and periodical records. As stated above; the Property was transferred in the name of the Provincial Government through letter No.SGC-4857 via mutation No.1553 dated 06.05.1965 but nobody challenged the said mutation. Furthermore, the delay of several decades in raising the claim especially by someone like Babu Noor Muhammad, who was admittedly well-versed in land dealings and revenue matters, was held to be

unjustified. The Appellate Court concluded that a person of his stature, with multiple land transactions in Rawalpindi and Mardan, could not have remained unaware of the non-sanctioning of mutation for over four decades if he had genuinely purchased the land. As regard the entries in the revenue record, this Court place reliance on the judgment reported as “MAZLOOM HUSSAIN Versus ABID HUSSAIN and 4 others” (P L D 2008 Supreme Court 571), wherein it has been observed that:

8. *From minute scrutiny of documentary evidence produced by the parties, it reflects that Barkhurdar, predecessor-in-interest, was the owner in possession of Khasra No'.1893. The long standing entries in the revenue record were made in his favour. The said property acquired by the appellant as legal heirs from his parents had been transferred in favour of the vendees respondents Nos. 3 to 5 through registered sale deed dated 13-11-1991.*

9. *As per the provision contained in section 52 of the West Pakistan Land Revenue Act, 1967, the presumption of truth is attached to the entries in the record of rights and periodical records. This provision is reproduced hereinunder for further ready reference:-*

"52. Presumption in favour of entries in record-of-rights and periodical records.---An entry made in a record-of-rights in accordance with the law for the time being in force, or in a periodical record in accordance with the provisions of this Chapter and the rules made thereunder, shall be presumed to be true until the contrary is proved or a new entry is lawfully substituted therefor."

10. *The High Court has observed that the entries in the Revenue Record in favour of the appellants were not made in accordance with the prescribed procedure provided in law. The answer to the foregoing objection is that the said entries emerged in the record of rights for the year 1965-66 have not been challenged by the plaintiff-respondents Nos.1 and 2 before the Revenue functionaries or through a civil suit. As provided in section 52 of the West Pakistan Land Revenue Act, 1967, the presumption of truth is attached to the revenue entries which has also been upheld by this Court in the case of Hakim Khan v. Aurangzeb and another 1979 SCMR 625). The relevant portion of the judgment is as under:*

"The entries in Jamabandis, as is obvious, carried a statutory presumption of truth under section 44 of the

Punjab Land Revenue Act, (XV of 1887) and section 52, West Pakistan Land Revenue Act (XVII of 1967)."

(iii) CONTRADICTIONS IN PETITIONER'S PLEADINGS

13. Furthermore, the Appellate Court also noted contradictions in the pleadings of the Petitioner. In one part of the plaint they claimed to be in possession and sought injunctive relief to protect their possession; and in another part they sought possession of the suit land indicating that they were not in constructive possession. This contradiction was found to be significant and undermined the credibility of their entire case. Furthermore, the delay of several decades in raising the claim especially by someone like Babu Noor Muhammad, who was admittedly well-versed in land dealings and revenue matters, was held to be unjustified. The Appellate Court concluded that a person of his stature, with multiple land transactions in Rawalpindi and Mardan, could not have remained unaware of the non-sanctioning of mutation for over four decades if he had genuinely purchased the land. In conclusion, the learned Appellate Court, after thorough consideration of the oral and documentary evidence, rightly held that the Plaintiffs had failed to establish their ownership or possession over the suit land. The findings of the Trial Court were found to be based on misreading and non-reading of evidence and were thus reversed. The conclusion under Issue No.1 was drawn on sound judicial reasoning, supported by proper appreciation of the record and applicable legal principles. This Court finds no legal or factual infirmity in the said findings warranting interference in revisional jurisdiction.

(iv) SURRENDERING BY SIBLINGS

14. As regards the contention that the other legal heirs of Babu Noor Muhammad (Respondents No.1, 3 to 7 in the Appeals and siblings of the present Petitioner/Qamar-ul-Islam) had surrendered their shares under pressure from the Anti-Corruption Department and that the applications filed by the Petitioner and said Respondents in this regard remained undecided until the passing of the impugned judgment and decree; it is observed that although it is a well-established principle of law that miscellaneous applications pending before a court must ordinarily be decided prior to final adjudication

of the main lis, but non-decision of such applications in the present case does not appear to be pivotal or consequential to the merits of the appeals. The Respondents, through their application, merely sought withdrawal of their claims and deletion of their names from the array of parties. They did not contest the impugned judgment and decree before this Court or any other forum; nor did they express any grievance regarding the non-disposal of their application. This clearly demonstrates that the said Respondents being the other legal heirs of Babu Noor Muhammad had consciously chosen to disassociate themselves from the litigation and no longer claimed any interest in the suit property. Their presence or absence as parties in the case, therefore, had no bearing on the adjudication of rights between the remaining contesting parties. The application filed by them, coupled with their recorded statements before the learned Appellate Court, unequivocally shows that they had relinquished their claims, thereby rendering themselves alien to the proceedings. In view of the foregoing, the non-decision of the said applications does not constitute a legal defect sufficient to undermine or affect the validity of the impugned judgment and decree.

15. It is important to mention here that the Petitioner/Qamar-ul-Islam tried to implead his siblings in this civil revision through Application i.e. C.M. No.87-C of 2015 but on 18.11.2024, the same was dismissed being misconceived in the following manner:

“Through this application, the applicant seeks impleading of persons mentioned in para No.1 of the application in the array of the respondents. It is an admitted position on the record that initially the said persons were arrayed amongst the plaintiff in the original suit but they then moved an application before the Appellate Court under Order XLI Rule 33 of the Code of Civil Procedure (V of 1908), asserting that they neither instituted the suit nor they have any interest or concern whatsoever with the judgment and decree dated 04.02.2010. It was also their stance

that they have no objection whatsoever if the said judgment and decree be set-aside and the suit be dismissed to their extent.

In view thereof, this application is apparently misconceived, which is accordingly dismissed.”

(v) TIME BARRED CASE

16. As regards Issue No.3, which pertains to limitation, this Court find fully in agreement with the detailed and well-reasoned findings recorded by the learned Appellate Court in the following manner:

“Onus to prove this issue was on the defendant, the learned trial court has decided this issue against the defendant. As earlier discussed under issue No. 1 the alleged sale deed was executed by Balamkand in favour of Babu Noor Mohammad in the year 1956. Babu Noor Muhammad has died in the year 2001 but in his life time he never applied at any forum for sanction of mutation in his favour and incorporation of himself as owner of disputed land in revenue record. Despite the fact that he was well aware of the revenue matters as reflects from the documents P26, 27, 29 to P31. Similarly, it has been discussed above that the suit property never remained in possession of the plaintiffs/respondents. Admittedly as per the documents available on the file the possession was transferred to TMA through mutation No. 703 dated 18.3.1990. During the course of arguments learned counsel for the respondent has pointed out to the statement of PW.4 Sh.Babar Rizwan, Advocate local commission who has inspected the case property on the orders of the court on 7.3.2008 is report P2 as well as nine photograph of the property. Learned counsel for the respondents/plaintiffs has argued that the land was lying vacant and as per law the vacant land is presumed to be in possession of the owner of the property but this argument is not convincing one. PW.4 has stated in his cross examination that he had not issued notice to Provincial Government at the time of inspection of the property and he did not inquire about the possession of the suit property while his local inspection. The photographs got prepared by the local commission are available on the file which reflects that the suit land is a vacant plot and waste of the locality is being dumped at the said plot and as per the statement of DW.2 the said plot was being filled up by the wastage of the locality under the supervision of TMA. The possession of the suit land was transferred in favour of firstly Provincial Government in the year 1965 and remained under their possession through tenant (lessee) and thereafter from the year 1990 remained under possession of the TMA. The plaintiffs have instituted this suit in

the year 2008, after about 18-years of the transfer of possession in favour of TMA and there is no cogent explanation on the part of the plaintiffs to explain the filing of the suit after such a long delay. It is pertinent to mention that earlier to filing of this suit Hazir Khan and others have instituted a suit regarding the same case property against the appellants-defendants on the basis of a sale deed dated 19.6.1942 which was dismissed by the learned trial court vide judgment and decree dated 4.5.2004. Another suit titled as "Abbas Haider Shamim vs. Province of Punjab & others" regarding the same case property was instituted on 11.10.2005 which was dismissed by the learned trial court under order 17 Rule 3 CPC vide judgment and decree dated 31.3.2008 and as per the statement of PW.5 the institution of both the said suits was in his knowledge and he had informed the plaintiffs of this case regarding the institution of the said suits, meaning thereby that respondents intentionally kept quiet in previous suit despite being aware of that. Under Article 120 of Limitation Act the maximum period to file a declaratory suit is 6-year and for filing of -suit for recovery of possession is 12-years but in this case the possession of land firstly changed in 1965 and then in 1990. The plaintiffs have filed the suit in year 2008, much later beyond limitation. Hence the suit was badly time barred and learned trial court has wrongly decided this issue against the defendant. The findings of the learned trial court are hereby reversed and issue is decided in favour of the defendant."

The Appellate Court rightly reversed the trial court's view and concluded that the suit was hopelessly time-barred. The registered sale deed in question was executed in 1956 and the alleged vendee, Babu Noor Muhammad, passed away in 2001 without ever initiating any steps to sanction mutation in his name, despite being a person well-versed in property and revenue matters. The suit land was transferred to the Provincial Government in 1965 and then to TMA in 1990 through Mutation No.703, yet the Petitioner approached the Court in 2008, after a lapse of nearly 18 years from the last change in possession. The argument of presumed possession over vacant land was rightly discarded by the learned Appellate Court, especially when the Petitioner/Plaintiff failed to produce any evidence of actual control over the suit property. The inspection report by the Local Commission showed that the land was being used for dumping waste under the supervision of TMA, which negates the claim of Petitioner's possession. The Hon'ble Supreme Court of

Pakistan in the judgment reported as Mst. RABIA GULA and others Versus MUHAMMAD JANAN and others (2022 S C M R 1009) has affirmed that *where the beneficiary of an entry in the revenue record also takes over the possession of the land on the basis of sale or gift transaction, as the case may be, recorded in that entry. His action of taking over possession of the land in pursuance of the purported sale or gift is certainly an "actual denial" of the proprietary rights of the purported seller or donor. Therefore, in such a case, if the purported seller or donor does not challenge that action of "actual denial" of his right, within the prescribed limitation period, despite having knowledge thereof, then his right to do so becomes barred by law of limitation.* Moreover, the knowledge of earlier litigations over the same land and deliberate inaction by the Petitioner further confirms that the suit was instituted after the expiry of prescribed limitation. Therefore, I concur with the finding of learned Appellate Court that the suit was barred under Articles 120 and 142 of the Limitation Act, and Issue No.3 was rightly decided in favour of the defendants.

Perusal of the record shows that although no specific date has been mentioned to establish when and how the Petitioner/Plaintiff acquired knowledge of the alleged transaction yet certain events clearly indicate that the suit is barred by limitation. Firstly, he was aware of the existence of the letter dated 21.07.1964, which he neither produced on record nor challenged. Secondly, mutation No.1553 dated 06.05.1965 (Ex.D12) is also on record. The Petitioner claimed that his father had informed him about the registration of the sale deed, which, naturally, must have been before the year 2001, when his father passed away. Whereas the limitation has to be counted from a particular date. In this regard reliance is placed on the judgment of the Hon'ble Supreme Court of Pakistan reported as "Haji WAJDAD Versus PROVINCIAL GOVERNMENT through Secretary Board of Revenue Government of Balochistan, Quetta and others" (2020 S C M R 2046), wherein it has been observed that:

“7. The revisional court was also correct in declaring the suit of the present appellant to be time barred being beyond six years

period provided under Article 120 of the Limitation Act, 1908 ("Act"). It has by now been settled that, limitation would run even against void affecting rights of any person. And no one can seek condonation of delay by challenging solely on the said basis. The aggrieved person who files a belated claim against an alleged void order would have to first plead his knowledge thereof, and then prove the same by cogent and reliable evidence, so as to legally justify his such claim to be within the period of limitation from the date of his knowledge.

8. *In the present case, had the appellant proved continuous possession of the disputed property, his right to the property could have been treated as a continuing right, and each of the successive entry in the Record of Rights (Jamabandi), recording the Provincial Government to be the owner of the disputed property would have given a fresh cause of action to the appellant to challenge the same. The failure on the part of the appellant to prove continuous possession was, thus, fatal.*

9. *We also note that there is a triple presumption of correctness attached to the impugned mutation: firstly, it was the result of the first settlement (Bundubast) of the area; secondly, the recording of ownership was based on long standing mutations; and finally, the recording was in favour of the provincial government that was protected under section 52 of the Land Revenue Act, 1967. This presumption of correctness attached to such entries in the Revenue Record, is, however, rebuttable. The judicial consensus that has developed over time is that the said presumption, cannot be controverted by mere oral evidence. To rebut the said presumption of correctness, sufficient and convincing evidence must be produced."*

Case in hand has similar facts as property for the first time mutated in favour of Federal Government then in the name of Provincial Government and finally transferred in the name of Respondent No.2/TMA, Hazro. It is significant to note that the Petitioner claims ownership of the property through his father/Babu Noor Muhammad, as one of his legal heirs. However, the suit was filed on 08.01.2008 i.e. fifty-eight (58) years after the execution and registration of the alleged mutation in favour of the Respondent/TMA Hazro. During his lifetime, Babu Noor Muhammad never asserted any right or claim over the property on the basis of the alleged sale deed. In these circumstances, the Petitioner, having inherited no asserted or recognized right from his predecessor, lacks locus standi to file the present civil revision. In this regard

reliance is placed on the judgments reported as “GHULAM ABBAS and others versus MOHAMMAD SHAFI through LRs and others” (2016 SCMR 1403), “MUHAMMAD RUSTAM and another versus Mst. MAKHAN JAN and others” (2013 SCMR 299), “KALA KHAN and others versus RAB NAWAZ and others” (2004 SCMR 517) and “ABDUL HAQ and another versus Mst. SURRYA BEGUM and others” (2002 SCMR 1330). It is also important to mention here that the original sale deed was not produced on record. Instead, the Petitioner adopted an unconventional method by summoning officials of the revenue department to testify the existence of the alleged registered sale deed; which was exhibited as Ex.P1. This document constitutes secondary evidence within the meaning of Article 74 of QSO. However, the record is silent as to whether the requisite permission for production of secondary evidence was sought or granted under Article 76 of QSO. The official witnesses have deposed that a copy of registered sale deed dated 03.01.1956 is available on record but they never stated that it was a genuine document. In the absence of such compliance, the document cannot be treated as admissible evidence. Reliance is place on the judgments reported as “IMAM DIN and 4 others versus BASHIR AHMED and 10 others” (PLD 2005 SC 418) and “MUKHTAR AHMAD through Legal Heirs versus MUHAMMAD YUNUS and 4 others” (2001 CLC 1796).

17. Furthermore, the Petitioner’s own witness, PW-3, admitted that the suit property was mutated in favour of TMA Hazro through Mutation No.1553 dated 06.05.1965. Yet, there is nothing on record to show that either the Petitioner or his father/Babu Noor Muhammad took any steps to assert or reclaim possession thereafter. When confronted, learned counsel for the Petitioner Barrister Syed Ali Nouman Shah, Advocate failed to provide any satisfactory explanation or refer to any application or proceeding in that regard. Thus, in view of the above facts, it stands established that as per the revenue record for the year 2003-04, the Respondent/TMA Hazro is the lawful owner in possession of the suit property since its transfer.

18. Even otherwise, it has been held by the Hon'ble Supreme Court of Pakistan, that the findings of the learned appellate court should be given weightage. Reliance is placed on "Muhammad Hafeez and another v. District Judge, Karachi East and another" (2008 SCMR 398). The relevant part of the judgment is reproduced hereunder:-

"It is well-settled that in the event of conflict of judgments finding of Appellate Court are to be preferred and respected unless it is shown from the record that such findings are not supported by evidence; that the conclusions drawn are against the material on record; that the judgment of the Appellate Court suffers from misreading or non-reading of evidence or that the reasons recorded for reversal of judgment are arbitrary, fanciful and perverse."

It is pertinent to mention here that the judgments produced by the learned counsel for the Petitioner cannot be relied upon being distinguishable from the facts and circumstances of the case as each and every case has its own facts and circumstances.

(V) CONCLUSION

19. For what has been discussed above, it has become crystal clear that the judgment passed by the learned Appellate Court reflects that each and every issue was discussed in detail and reasons were assigned for reversing the findings of the Trial Court. No jurisdictional error, illegality, material irregularity, or misreading/non-reading of evidence has been pointed out in the impugned judgment, which would warrant interference by this Court in its revisional jurisdiction under Section 115 CPC. Consequently, this civil revision being devoid of merit is **dismissed** with no order as to costs.

**(JAWAD HASSAN)
JUDGE**

Approved for reporting.

JUDGE